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Menstrual Products and the Bar: Advocacy Seeks to Create Equal Bar Exam Testing Conditions for Menstruators

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We can all recall the stress, fear, and worry that accompany taking the bar exam. About half of us also were anxious we would have to manage our period in the middle of this awful two-to-three-day ordeal. Bar examiners across the country have made this prospect far more daunting than it needs to be by not treating menstruation as the natural biological process that it is.

Without proof of any test-taker having ever cheated using a tampon or pad, [some states](#) have chosen to stigmatize and potentially penalize people who have their periods with draconian policies prohibiting bar examinees from bringing their own menstrual products with them. Other states have failed to adopt or communicate clear policies on the subject, increasing test-takers' anxiety: one should not have to waste time researching the Bar Examiners' hard-to-find policies or calling their offices for answers—which may, or may not, yield consistent information.

The harm here is four-fold: 1. It is wrong to make test-taking conditions more challenging for people based on the fact they menstruate; 2. It is wrong to limit test-takers to random products selected by Bar Examiners that could put test-takers' health and menstruation management at risk; 3. It is wrong to exclude test-takers from *any* menstrual products simply because they do not use the women's restroom; and 4. It is wrong to convey the [harmful message](#) that all people who menstruate are untrustworthy and do not belong in the legal profession.

Some states, including Texas and Pennsylvania, prohibited exam-takers from bringing in their own menstrual products, offering to provide a limited and unpredictable set of products in the women's bathroom. (After much advocacy, [Texas changed its rule for the September exam](#), though it is unclear if this is a permanent change.) This does not solve the problems these states created in the first place by banning test-takers from bringing in their own products. People who menstruate need their own products because menstrual products are not "one size fits all": menstruators require different sizes and levels of absorbency in their products to best fit their body and menstrual flow.

Use of the wrong size product can lead to everything from pain and discomfort to [toxic shock syndrome](#) (if too large) and time-consuming, uncomfortable, and disruptive leaks (if too small). Further, some individuals require hypoallergenic products to protect against allergic reactions. If not provided, applicants may experience vaginal itching or other problems caused by using allergen-containing tampons or pads inside or adjacent to their bodies. All of these consequences are awful enough on their own; here, they create an unconscionable risk of derailing exam performance.

In addition, by limiting test-takers from bringing in their own products and then providing products only in the women's restrooms, Bar Examiners relegate [transgender men and nonbinary persons who may menstruate](#), and who may use the men's restrooms or all-gender restrooms, to having no access to menstrual products during the bar exam.

Other states allow test-takers to bring their own products, but require them to be packaged in a clear plastic bag—with some states mandating that the product be unwrapped. This last requirement makes no sense: the wrapper both keeps the product hygienic before being inserted into or placed adjacent to one's body and provides an efficient

way to safely dispose of used products, reducing janitorial staff's exposure to bodily fluids. Further, removing the wrapping exposes the adhesive on the bottom of some pads, rendering them practically useless when the menstruator tries to unstick them from the clear plastic bag.

As much as we want to destigmatize menstruation and eradicate the embarrassment and taboo of being seen with a tampon or pad, it remains an invasion of privacy to require test-takers to carry their products in a clear plastic bag, revealing to a proctor (and possibly a classmates, colleagues, or future opposing counsel) that one has or expects to get their period during the exam. (One North Carolina bar exam [test-taker reported](#) that a proctor asked her if she “really needed those” while inspecting her plastic bag of menstrual products.) Finally, this intrusion is even more painful for, and potentially outs, transgender men and non-binary law graduates who may not be public about their biological sex. It may even set them up for bigoted harassment—during the biggest exam of their lives.

Other states allow test-takers to bring their own products and do not require them to be carried in a clear bag—but, they must check them with a proctor or retrieve them outside the exam room before heading to the restroom. This “solution” means that a menstruating person will have to take vital time away from the exam (or a break between sections of the exam) to obtain their menstrual products before using the restroom. This “time tax” is as unacceptable as the other approaches described above.

At least some states treat people who menstruate without such bizarre suspicion, allowing them to bring in and keep their own products with them during the exam, and use them as needed during the test—without having to ask a stranger for their own personal possessions. To date, there have been no known accusations of test-takers trying to do the impossible: write helpful information on a pad or tampon to give them an edge on the exam or smuggle in written answers inside the product's wrapping.

The lack of uniformity of equity-based rules permitting access to one's own menstrual products is unacceptable and must be changed. Thankfully, in the age of social media, law graduates have taken the lead on this advocacy, sharing the hurdles they are facing on social media and asking state Bar Examiners to eliminate these outrageous rules, largely under the [#bloodybarpocalypse](#) hashtag.

Once we saw their posts, the three of us, working with fantastic former clinic students of Fordham and UDC, began advocating that all state Bar Examiners adopt better menstrual products policies. We drafted a [letter](#) to the National Conference of Bar Examiners (NCBE)—co-signed by over 2800 law professors, law students, law school graduates, and lawyers in under 24 hours. We also sent letters to Bar Examiners in each state that administered an in-person July bar exam and did not have a clear, acceptable policy in place. All of these efforts led to some quick changes. The NCBE contacted [state Bar Examiners](#) and informed them that menstrual products were not included in the NCBE's “prohibited paper” category and that test-takers should be able to bring in their own products. The press started asking questions of the state Bar Examiners. And state Bar Examiners began changing or clarifying their policies, with some confirming to examinees that they could bring personal menstrual products to the exam. For instance, West Virginia Bar Examiners insisted that they permitted products in the exam room, even though their website said differently. Texas state Bar Examiners changed their policy from not permitting products to permitting them at its September exam. (The state has issued contradictory statements, however, about whether this change is permanent.)

This positive change is not, however, uniform: even those states that have adopted equitable policies must be monitored to ensure they are adopting best practices. In our efforts to get accurate and honest information from state Bar Examiners across the country, it has been deeply disconcerting to learn how many jurisdictions are silent on whether examinees may bring in their own menstrual products; have informal policies that contradict written

statements about what items are allowed in the exam (e.g., not listing menstrual products in the list of items test-takers can bring in, but informally allowing them); or have stubbornly held onto their recalcitrant policies.

Equally unacceptable, many Bar Examiners will not share the documentation that they say embodies their policies (e.g., generic letters to test-takers informing them what they can and cannot bring into the exam; postings on their web sites behind a security wall). Without this proof, there is no accountability and the true practices of these states remain unknown.

As we reach out to jurisdictions administering in-person exams in the coming months, our demands are clear: Bar Examiners must issue explicit policies permitting examinees to bring their own menstrual products in to bar exams, in an opaque container or on their person, and to publish these policies on their websites. Other bar-related policies that can have disproportionate effects also must be changed. For instance, examinees needing to pump their breastmilk must be given ready accommodations and bathroom access must not be limited as it affects both pumpers and menstruators.

To learn more about all of the advocacy efforts in this area, check out [Menstrual Equity and the Bar Exam: Round Up of Op-Eds and Other Media Coverage](#) on the Feminist Law Professors blog and follow the hashtag [#MPandTheBar](#). If you want to get involved in this work, let us know. And no doubt other activists working on the pumping and bathroom access issues would welcome assistance too. There is, unfortunately, plenty of work to be done.